



CHAPTER i.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Transfer of Training Colleges in Scotland.

A.D. 1908.

[27th March 1908.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament:

62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Transfer of Training Colleges (Scotland) Order Confirmation Act 1908.

Short title.

A.D. 1908.

S C H E D U L E.

TRANSFER OF TRAINING COLLEGES (SCOTLAND).

Provisional Order to enable the body of management of any existing Training College or Colleges in Scotland to demit their powers of management and to transfer such College or Colleges and for other purposes.

WHEREAS by a Minute of the Committee of Council on Education in Scotland dated the thirtieth day of January One thousand nine hundred and five it was provided that in the event of the body of management of any existing training college or colleges resolving to demit their powers of management in favour of any of the committees constituted under the said Minute and to transfer to any of such committees the college premises and equipment any of such committees should have power to receive the same and to pay therefor such purchase money or annual rent as might be agreed upon Provided always that no payment should be made for the purchase or rent of any premises which are held in trust by the said body of management for the purpose of training teachers :

And whereas it is desirable to enable the body of management of any existing training college or colleges to demit their powers of management and to transfer the college premises and equipment to any committee or committees or other body or bodies or trustees duly established or to be established by or with the approval of the Scotch Education Department and to make such other provisions as this Order contains :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title.

1. This Order may be cited as the Transfer of Training Colleges (Scotland) Order 1908.

Interpretation.

2. In this Order the expression “ body of management ” means any church and any general assembly court or committee thereof and any trustees or other persons owning holding or managing

any existing college or colleges for the training of teachers in A.D. 1908.
Scotland and property connected therewith.

3.—(1) It shall be lawful for any body of management to demit their powers of management and to transfer and convey or cause to be transferred and conveyed all or part of the college premises property and equipment of any college which are presently vested in or held in trust for such body of management to any committee or committees or other body or bodies or trustees duly established or to be established by or with the approval of the Scotch Education Department with power to receive such transfer and to administer the colleges provided that such transfer and conveyance shall be made on such terms and conditions as may have been or may hereafter be agreed between any such body of management and any such committee or committees or other body or bodies or trustees with the approval of the said Department.

Powers of
bodies of
manage-
ment of
existing
training
colleges.

(2) Every such transfer and conveyance shall operate to wholly discharge and release the body of management making or being parties to the same from all trusts dispositions liabilities and obligations whatsoever affecting the premises property and equipment transferred or any part or parts thereof.

(3) Any such body of management may make and carry into effect agreements and may do all such other acts and things as may be necessary or proper for carrying into effect the provisions of this section.

(4) Any such body of management may for the purposes of the above provisions act and shall be deemed always to have had power to act by a business committee or sub-committee of such body.

4. All the costs charges and expenses preliminary to and of or incidental to preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the committees or other bodies or trustees to whom the college premises property and equipment of any existing college or colleges for the training of teachers may be transferred under this Order in such proportions as the Scotch Education Department may direct.

Costs of
Order.

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